of court proceedings in which she was already on bail, based on a complaint of the commission. The apex court also categorically stated that Kiran Bedi was discriminated against. Further, since her prosecution was not based on the order of law, the prosecution against her should also go, the same court declared. Various national dailies recorded and reported the event, which was history in itself.

Protection under Section 8B
Kiran Bedi was 'Discriminated'

Justice E. S. Venkataramiah, the presiding judge of the bench hearing the Kiran Bedi case, observed on Thursday [28 July 1988] that the commission's order naming only four persons entitled to the protection under Section 8B of the Commission of Inquiry Act was discriminatory on the face of it as Ms Bedi, former DCP (north), was left out.

'Either the order must go or they must write a fresh order,' the judge explained. If the commission judges had given reasons for this discrimination this appeal would not have come to the Supreme Court, he observed.

Since Ms Bedi is being prosecuted on this point, the judge doubted the validity of the prosecution also. The court had earlier stayed her prosecution for not taking oath before the commission.

Her counsel and Additional Solicitor-General, Mr G. Ramaswamy, said that she had not refused to take oath but only maintained that the stage has not come to put her in the box. Even the commission's order had stated that Section 8B witnesses would be examined at the end of the proceedings. Therefore, her prosecution was not proper, counsel submitted.

Moreover, the lawyers cannot intervene in the prosecution as they have no locus standi in it. It is entirely between the court and the accused, he argued.

Justice Venkataramiah asked counsel to read out the order of the commission which purportedly discriminates against Ms Bedi. He then observed that the parties were not dealt with even-handedly. When he indicated that the prosecution is liable to be set aside, Mr K. K. Venugopal, counsel for the lawyers, said that the order should not be set aside on a 'technical' ground. The judge insisted that it was 'substantial' ground.

Most of the day on Thursday was taken by Mr Ramaswamy summing up his arguments of the last two weeks, and reading out well-known judgements on the procedures of commissions of inquiry.

Justice Venkataramiah strengthened his arguments occasionally by quoting judgements. Reading out the judges' case of 1980, he remarked that the loss of reputation is worse than death for anyone. The judge also stressed that the procedures followed by tribunals must be fair and reasonable under Article 21 of the Constitution. Agreeing with Mr Ramaswamy that the lawyers must lead evidence first, the judge said that the principle of burden of proof must be followed.

The hearing will resume on Friday. The bench hearing the appeal of Ms Bedi challenging the procedures adopted by the Goswami–Wadhwa Committee inquiring into the lawyers' strike in Delhi also consists of Justice M. M. Dutt and Justice N. D. Ojha.

(*Indian Express*, 29 July 1988)

SC May Quash Bedi's Prosecution